NON-SUPPLYING GROWER RICE SEED ORDER FORM 2026/27

IMPORTANT INFORMATION – PLEASE READ

1. Please complete this form for seed varieties you offer to purchase from Ricegrowers Limited trading as SunRice ("**SunRice**").
2. This form constitutes an offer to purchase rice seed varieties. This offer is not binding on SunRice until it is accepted by SunRice in writing via a Seed Order Confirmation.
3. If accepted, this offer will be governed by the full terms and conditions attached to this form ("**Terms**"). Please note that these terms only relate to SunRice's supply of Seed to you, and do not include terms relating to any potential offer to supply paddy to SunRice you may make in the future.
4. Please complete this Seed Order Form and return to growerservices@sunrice.com.au by 30 October 2026.

GROWER DETAILS

Name

Customer Number

Address

Mobile Number

Email Address

Town | State | Post Code

CREDIT APPLICATION

An application for a commercial credit account with SunRice will need to be completed here.

SEED ORDER

I/we wish to purchase rice seed from SunRice but do not wish to offer to supply the paddy produced from the hectares to be sown to SunRice and agree I/we will pay for seed on collection at the standard seed price on the basis of the details in this Table and in the terms and conditions attached to this form:

#	Variety	Seed Tonnage	PBR Seed Sub-Licence Tonnage	Issue Depot	Total Price
1					
2					
3					
4					
5					
			Total price		$

Signature: X Date: X

2026/27 Pure Seed Price Bulk $/t excl GST

	EX WHITTON	EX DENILIQUIN
Matilda[ф] (V071)	$1,151	$1,151
Sherpa[ф]	n/a	$1,151
Topaz[ф]	$1,346	n/a
Opus[ф]	n/a	$1,216

[ф] Varieties subject to plant breeder's rights under the *Plant Breeder's Rights Act 1994* (Cth).

These requests to purchase seed will be reviewed by SunRice on a case by case basis having regard to the seed requested by you in your most recent Non-Supplying Grower Expression of Interest to Purchase Seed Form, where those requests have been confirrmed by SunRice, and other factors including forecast demand, targeted volumes for supplying growers under fixed contracts and the pools, and requirements to support and maintain SunRice's milling program.

Seed Collection Arrangements

- Growers need to make a booking for seed issue following receipt of SunRice's seed confirmation letter
- Please phone the seed issue point on the numbers below at least two days prior to the planned collection date

Whitton	02 6955 2727	Weighbridge
	0428 264 318	Graham Smith
Deniliquin	03 5881 0241	Weighbridge

Grower Services
57 Yanco Avenue
Leeton NSW 2705
1800 654 557
growerservices@sunrice.com.au

Non-Supplying Grower Rice Seed Purchase Terms 2026/27 ("Terms")

1 DEFINITIONS:

In this Contract:

(a) **"Anti-Bribery Laws"** means all applicable legislation and regulations and any policies with the force of law in any jurisdiction relating to anti-bribery and anti-corruption, being all laws around the world that generally prohibit bribery of governmental officials or any other giving or receiving of bribes between private commercial parties in connection with conducting business, including Chapter 4, Division 70 of the *Criminal Code Act 1995* (Cth) (Australia).

(b) **"Business Ethic Laws"** means the laws applicable to the Grower in relation to the following:

(i) fundamental human rights and in particular the prohibition of:

(A) using child labour and any form of forced or compulsory labour; and

(B) organising or supporting any form of discrimination amongst its employees or towards its suppliers and subcontractors;

(ii) labour, immigration and prohibition of illegal work; and

(iii) anti-money laundering.

(c) **"Commercial Credit Account"** means an arrangement approved (and not withdrawn) by SunRice that permits the Grower to pay for Seed after delivery in accordance with these Terms.

(d) **"Contract"** means the Order Form and these Terms.

(e) **"Grower"** means a Non-Supplying Grower.

(f) **"Non-Supplying Grower"** means a grower who has filled out the Order Form.

(g) **"Order Form"** means the order form document titled "Non-Supplying Grower Rice Seed Order Form 2026/27".

(h) **"PBR Seeds"** means Reiziq(D), Opus(D), Sherpa(D), Topaz(D), Viand(D) and Matilda(D) (formerly known as V071).

(i) **"Rice Biosecurity Zone"** means the biosecurity zone established under the NSW Biosecurity Regulation 2017, being, Local Government Areas of Balranald, Berrigan, Carrathool, Edward River, Federation, City of Griffith, Hay, Leeton, Murray River, Murrumbidgee and Narrandera.

(j) **"Seed"** has the meaning given to that term in clause 2.1.

(k) **"Seed Order Confirmation"** means the written confirmation sent or to be sent to the Grower by SunRice following the receipt of a completed Order Form from the Grower.

All other capitalised terms have the meaning given in the Order Form.

2 OFFER

2.1 **Offer Only**: The Order Form constitutes an offer by the Grower to purchase rice seed ("**Seed**") from Ricegrowers Limited ("**SunRice**") on the terms of this Contract. This offer is not binding on SunRice until SunRice confirms its acceptance by sending the Seed Order Confirmation.

3 PURCHASE OF SEED

3.1 **Seed Prices:** The Grower acknowledges that Seed it offers to buy from SunRice in accordance with this Contract will be supplied at the commercial price set out in the Order Form, less any deposit already paid by the Grower in respect of Seed of a variety, and is payable on collection.

3.2 **Variations**: The Grower can request a variation to the variety and/or seed tonnage as indicated on the Order Form by phone call or email to SunRice Grower Services. SunRice is not obliged to accept variations requested. If a variation is accepted by SunRice, SunRice will confirm the variation in writing and the variation will be effective from that time.

3.3 **Passing of Title and Risk in Seed:** Risk in Seed passes from SunRice to the Grower on collection. Title to the Seed passes from SunRice to the Grower upon receipt of payment from the Grower.

3.4 **Restrictions on use of PBR Seeds:** In relation to PBR Seeds, the Grower acknowledges and agrees that:

(a) the PBR Seeds may only be used to cultivate, produce and sell crops produced from the PBR Seeds in milled form or for the purpose of milling in Australia;

(b) it will not offer for sale, sell, otherwise market, or export, the PBR Seeds, propagating material derived from those PBR Seeds or harvested material derived from planting the PBR Seeds to any person other than SunRice, or stock that material for such purposes; and

(c) it will not use the PBR Seeds, propagating material derived from those PBR Seeds or harvested material derived from planting the PBR Seeds for any further propagation of the variety or for the purpose of creating any Essentially Derived Varieties, Dependent Varieties or any other variety.

For the purpose of this clause 3.4, **Essentially Derived Variety** and **Dependent Variety** have the meaning given to those terms under the *Plant Breeder's Rights Act 1994* (Cth).

3.5 **Return of unused Seeds:**

(a) Subject to (b) below, any Grower located inside the Rice Biosecurity Zone must return any unused Seed to SunRice for a refund at the purchase price if the Seed is not used before 16 December 2026 (unless agreed otherwise in writing by SunRice). The refund will be subject to the Seed being in the same condition as it was supplied to the Grower and the refund may be discounted by a reasonable amount reflecting the reduced quality if the condition of the Seed has deteriorated.

(b) In the event the Grower transports or stores unused Seed intended for planting for the 2026/27 season outside the Rice Biosecurity Zone:

(i) the unused Seed must, at the Grower's own expense, be milled or destroyed unless otherwise agreed in writing by SunRice; and

(ii) the Grower must provide SunRice with a statutory declaration confirming that the unused Seed was milled or destroyed.

4 OTHER TERMS

4.1 Compliance with SunRice policies: The Grower:

(a) must comply with Anti-Bribery Laws and Business Ethics Laws; and

(b) must comply with SunRice's Anti-Bribery and Corruption Policy, the SunRice Supplier Sustainability Code, the Ricegrowers Supplier Sustainability Program and any other policies accessible here.

The policies referred to above will be taken as at 1 September 2026 and any amendment to the policies after this date will not apply to this Contract unless agreed with the Grower.

4.2 Reporting: to assist SunRice with its reporting obligations, on or before 30 June of the current crop year, the Grower agrees to provide SunRice with a report containing information on disease tolerance ratings in relation to any PBR Seeds.

4.3 Commercial Credit Account: Subject to these Terms, if the Grower has a Commercial Credit Account, Seed supplied by SunRice must be paid for within 30 days of the date of invoice. If the Grower does not have a Commercial Credit Account with SunRice then the Grower must pay for Seed before they are supplied. SunRice may, acting reasonably, cancel a Commercial Credit Account at any time by notice to the Grower. Unless otherwise agreed, all payments are to be made by cash or electronic funds transfer of cleared funds in Australian dollars.

4.4 GST:

(a) Any reference in this clause to a term defined or used in the A New Tax System (Goods and Services Tax) Act 1999 (Cth) is, unless the context indicates otherwise, a reference to that term as defined or used in that Act.

Unless otherwise expressly stated the price of Seed payable by the Grower, in accordance with these Terms; is exclusive of GST.

(b) The Grower warrants that it is registered or required to be registered for GST.

(c) If GST is imposed on a supply of Seed made by SunRice to the Grower, the consideration for the supply is increased by an amount equal to the consideration otherwise payable for the supply (the price of Seed excluding GST) multiplied by the rate at which the GST is imposed under the GST law. The additional consideration is, subject to SunRice, as the supplier of the Seed, issuing a tax invoice to the Grower, as the recipient of the supply, payable by the Grower at the same time as the consideration to which it relates.

(d) If either SunRice or the Grower, in accordance with these Terms, as the case may be, is entitled to be reimbursed or indemnified for a loss, cost, expense or outgoing incurred, then the amount of the reimbursement must be reduced by an amount equal to any input tax credit to which the party being reimbursed is entitled in relation to that loss, cost, expense or outgoing.

(e) Whenever an adjustment event occurs in relation to any taxable supply of Seed, SunRice, as the supplier, must determine the net amount payable in respect of GST in relation to the supply (taking into account any adjustments) and if that amount differs from the amount previously paid, the amount of the difference must be paid by, refunded to or credited to the Grower, as the recipient, as applicable and SunRice shall issue an adjustment note to the Grower.

4.5 Inconsistency: This Contract, as amended and varied from time to time, amends and overrides any other terms agreed between the parties relating to the matters covered by this Contract to the extent of any inconsistency.

4.6 Dispute Resolution: Any dispute arising out of or in connection with this Contract **("Dispute")** will, unless otherwise expressly agreed to the contrary by the parties, be resolved in accordance with this clause:

(a) Any party claiming that a Dispute has arisen must notify the other party in writing giving details of the Dispute ("**Dispute Notice**").

(b) Within 5 business days of a party giving the other a Dispute Notice, a senior representative from each party will meet and use reasonable endeavours acting in good faith to resolve the Dispute by joint discussions.

(c) If the senior representatives are unable to resolve the Dispute within 5 business days, either party may, by notice in writing, refer the dispute to an independent arbitrator appointed by the parties. If the parties cannot agree on the appointment of an arbitrator within a further 5 business days, either party may request Resolution Institute to appoint an independent arbitrator to resolve the Dispute in accordance with the Resolution Institute Arbitration Rules.

(d) The arbitrator may specify the process for resolving the Dispute. The decision of the arbitrator will be binding. Unless specified otherwise by the arbitrator, each party will bear their own costs in respect of the arbitration and the arbitrator's costs will be shared equally.

(e) Nothing in this clause prevents any party from seeking urgent interim orders from a court.

4.7 Confidentiality: The Grower must keep the terms of this Contract, and any other confidential information relating to the activities under this Contract, strictly confidential, unless it is required by law or with SunRice's written consent. This obligation survives termination of this Contract.

4.8 Authority: The signatory warrants that they are duly authorised to sign the Order Form on behalf of the Grower.

4.9 Applicable Law: This Contract is governed by the laws in the state of New South Wales and the parties submit to the non-exclusive jurisdiction of the Courts of that place.

4.10 Entire Agreement: This Contract and any documents expressly referred to herein constitute the entire agreement between the parties about this subject matter and supersedes all previous agreements, representations, understandings and negotiations on the subject matter.